		neither party will do anything which will injure the right of the other to receive the benefits of the agreement." (*Gruenberg v. Aetna Ins. Co.* (1973) 9 Cal.3d 566, 573; *Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 36.) It also requires each contracting party "to do everything that the contract presupposes that he will do to accomplish its purpose." (*City of Hollister v. Monterey Ins. Co.* (2008) 165 Cal.App.4th 455, 491 (internal quotes omitted); *Carson v. Mercury Ins. Co.* (2012) 210 Cal.App.4th 409, 429.) The precise nature and extent of the duty imposed by the implied covenant depends on the nature and purpose of the underlying contract and the legitimate expectations of the parties arising from the contract. (*Jonathan Neil & Assocs., Inc. v. Jones* (2004) 33 Cal.4th 917, 937; *Egan v. Mutual of Omaha Ins. Co.* (1979) 24 Cal.3d 809, 818; *Howard v. American Nat'l Fire Ins. Co.* (2010) 187 Cal.App.4th 498, 528.) The purpose of first party coverages is to indemnify the insured for covered losses. Thus, the implied covenant of good faith and fair dealing in first party cases obligates the insurer: — to make a *thorough and prompt investigation* of the insured's claim for benefits; and — *not to unreasonably delay or withhold* payment of benefits.

		(See *Silberg v. California Life Ins. Co.* (1974) 11 Cal.3d 452, 461-462; *California Shoppers, Inc. v. Royal Globe Ins. Co.* (1985) 175 Cal.App.3d 1, 54-55.) Where there is a genuine issue as to the insurer's liability under the policy for the claim asserted by the insured, there can be no bad faith liability imposed on the insurer for advancing its side of that dispute. (*Jordan v. Allstate Ins. Co.* (2007) 148 Cal.App.4th 1062, 1072.) Tort liability for breach of the implied covenant of good faith and fair dealing is unique to insurance contracts: "[F]or a variety of [public] policy reasons, courts have held that breach of the implied covenant (in insurance cases) will provide the basis for an action in tort." (*Foley v. Interactive Data Corp.* (1988) 47 Cal.3d 654, 684.) Here, State Farm has met its burden to show that it made a thorough and prompt investigation and acted reasonably in reaching its conclusion. (SSUF 3-19.) The Claims file shows that the date of loss was reported as June 12, 2023, and after investigating, State Farm denied the Claim on July 27, 2023, because it was not covered under the Policy. (SSUF 21) The cause of the reported water intrusion was identified as deteriorated and leaking drain piping, including a rotted kitchen drain within the wall, a decayed and leaking kitchen drain line beneath the residence, and deteriorated cast-iron drain piping beneath the residence. (SSUF 15) Plaintiff contended that the interior damage was